IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE HELD AT NSAWAM ON 16TH DAY OF APRIL, 2025 BEFORE HER LADYSHIP RUBY NAA ADJELEY QUAISON (MRS), HIGH COURT JUDGE.

SUIT NO. C1/50/2023

ADU KOFI DJIN : **PLAINTIFF**

17 SAMORA MACHEL ROAD

ASYLUM DOWN, ACCRA

VRS.

1. **JOHN KWEKU AACHT & ANOR** : **DEFENDANTS**

   ACCRA

2. **LANDS COMMISSION**

   KOFORIDUA

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Parties: Plaintiff absent

Defendants absent.

Counsel: Selorm Adonoo for Plaintiff present.

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JUDGEMENT

On the 18th day of April, 2023, the Plaintiff issued a Writ of Summons with Statement of Claim against the 1st and 2nd Defendants claiming the following:

a) Declaration of title to all that 6.08-acre parcel of land at Pokrom-Mantease bounded on the North-East by Plaintiff's property measuring 660.8 feet more or less on the South –West by Plaintiff's property measuring 646.3 feet more or less on the South-East by Ofei Yaw's property measuring 153.9 feet more or less on the North-West by Plaintiff's property measuring 729.6 feet more or less.
b) Recovery of possession of the said land.
c) Perpetual Injunction restraining the 1st Defendant, his servants, agents, privies and assigns from entering the said land for any purpose or in any way disturbing or interfering with the Plaintiff's and or his tenant's right to possession of the said land or quiet enjoyment of possession of the said land.
d) Damages; special and general.
e) Order for the 2nd Defendant to ensure Plaintiff's ownership of the said land is registered in their records.

The 1st defendant was served with the writ of summons and statement of claim on the 15/08/2023 by substituted service in accordance with *Order 7 Rule 6 of High Court Civil Procedure Rules, 2004 (C.I. 47*) by the court differently constituted. The 2nd defendant was served with the writ of summons and statement of claim through its secretary called E. Johnson on the 28th April 2023. The defendants failed and/or neglected to enter appearance neither did they file a statement of defence. A search conducted at the registry of this court on the 23rd January, 2024 showed that 1st Defendant was served on 15th August, 2023 and 2nd Defendant served on 28th April, 2023.

The plaintiff on the 14/2/2024 applied to this honourable court for the suit to be set down for trial pursuant to *Order 10 Rule 6 of the High Court Civil Procedure Rules, 2004 (C.I. 47)*.

The said application by a motion on notice to set down the matter for trial was served on the 2nd defendant. The 1st defendant was served by substituted service on the 26/03/2024.

Subsequently, on 24th May, 2024, the matter was set down for trial. The court ordered that Witness Statements, together with pre-trial checklist be filed by 10th June, 2024. Case Management Conference was set for 21st June, 2024. The Trial for the suit was slated for 12th July, 2024 with an order of the court to serve all processes on the 1st Defendant by substituted service. The trial of the suit commenced on 22nd July, 2024.

The Defendants in this suit were served with several hearing notices and in some instances court notes especially on 14/10/2024, 11/10/2024, 31/07/2024, 29/07/2024, 23/07/2024, 22/07/2024, and 24/06/2024 but they failed to attend court. It is trite that the court is empowered to in instances where the defendants fail to attend court/trial to defend themselves to allow the plaintiff to prove their claim. The Supreme Court in **ANKOMA V. CITY INVESTMENTS CO. LTD. [2007 – 2008] SCGLR P 1064 AT 1067 AT HOLDING 4** stated the following in addressing a similar occurrence:

"The Defendant, after several attempts, was finally served but failed to appear. The court was entitled to give a default judgment as in the instant case, if the party fails to appear after notice of the proceedings has been given to him. For then it would be justifiable to assume that he does not wish to be heard."

Also In **ALABI V. B5 PLUS COMPANY LTD (2018 -2019) 1 GLR 197** the court held that *"…where a party voluntarily and deliberately failed and/or refused to attend upon a court of competent jurisdiction to prosecute a claim against him, he could not complain that he was not given a fair hearing or that there was a breach of natural justice. The defendants must be respected for making such a choice, but they must not be allowed to get away with it…"*

This honourable court following the same principles of the above cited authorities after the defendants failed to attend court despite having notice went ahead to hear the suit.

The background to this suit are succinctly set out by the plaintiff. The Plaintiff by Indenture of Confirmation dated 28th day of March, 2007 made between Abusuapanyin Ohene Kwabena and Adu Kofi Djin stamped LVB/ER531/2011 Indexed RE 331/11 and registered as Deed No. EA 9827 dated 18th April, 2011 acquired from the Asakyiri Family of Pokrom Nsaba land covering total area of 62.35 acres of which the land the subject matter of this suit forms a small part.

The Plaintiff entered into possession of the 62.35-acre land and exercised all and various rights of ownership including farming on it, planting orange trees on part of it and leasing portions out for farming and building purposes and chasing out trespassers from time to time from it.

Sometime in April, 2023 as stated in paragraph 7 of Plaintiff's Statement of Claim, he was by some odd means informed by the Police in Koforidua that the 1st Defendant was claiming five acres of the same piece of land granted one of his grantees, Mira Investment. In fact, Mira Investments had not even finished paying for the grant when this information got to Plaintiff. The Plaintiff deemed the action of the 1st Defendant whom he has never known or met as a challenge to his interest in the land he, Plaintiff, has owned since 2007.

The Plaintiff therefore brought the present action in court against the Defendants for the reliefs stated above. The Plaintiff has been on his entire acquisition since it was purchased in 2007 (he has in fact been in possession since 1993). He has caretakers on the land and has shown overt acts of ownership on the same including leasing or selling portions to

grantees. He also has tenants on the land who farm and perform other acts on behalf of Plaintiff or by his consent and approval.

It is trite learning that, the Plaintiff who seeks a declaratory relief (such as declaration of title to land) must establish this by clear and acceptable evidence whether or not the Defendant against whom he seeks the relief was present or not. In effect, the court does not make declarations of right either on admission or default without taking evidence. Since the reliefs sought by the plaintiff in his writ of summons includes declaratory ones, the honourable court cannot enter judgment simpliciter against the defendants either in default of appearance or defence without calling the plaintiff to establish his/her claim. The Plaintiff's case must succeed on the strength of his own evidence and not on the weakness of the Defendants' case.

See: **CONCA ENGINEERING (GHANA LTD.) V. MOSES (1984 – 86) 2 GLR 319.**

See Also: ***IN RE*; NUNGUA CHIEFTANCY AFFAIRS, ODAI AYIKU IV VRS THE ATTORNEY–GENERAL (BORKETEY LARWEH XIV-APPLICANT) [2010] SCGLR 413 @416.**

See Also: **REPUBLIC VRS HIGH COURT, ACCRA; EX-PARTE OSAFO [2011] 2 SCGLR 966 @ 972.**

See Also: **BANK OF GHANA (NO.3) VRS SEFA (NO.3) & ANOR [2015 - 2016] 1 SCGLR 741.**

See also: **THE REPUBLIC VRS THE HIGH COURT, WINNEBA EX-PARTE; PROFESSOR MAWUTOR AVOKE [2019] 128 GM J171 @ 196.**

EVIDENCE:

The Plaintiff, an 84-year-old legal practitioner, did not testify personally. The plaintiff however called two witnesses, namely; Kwaasi Djin (PW1) his son and Ernest Mensah, his Surveyor (PW2) to testify on his behalf. The evidence of the two witnesses were

straightforward and also consistent with Plaintiff's statement of claim. The plaintiff commenced his case by calling Kwaasi Djin (PW1). PW1 is the plaintiff's son, and doubles as his Lawyer in many of his land transactions.

PW1 in his evidence in chief stated he has been Lawyer for the Plaintiff, Adu Kofi Djin, who is also a Lawyer (with over 50 years standing at the Bar), in most of his dealings on his land at Pokrom-Mantease (also known as Aburi Amanfro), portion of which is being claimed by 1st Defendant. He prepares all of Plaintiff's lease documents in respect of his Pokrom-Mantease land and I have been involved in negotiations with other lessees in the past for interest in the aforementioned land. His knowledge of the matter and Plaintiff's interest in the land described below is firsthand as he has worked very closely with the Plaintiff a few years after he acquired the land from the Asakyiri Family.

The land in dispute is all that parcel of land (6.08 acres) at Pokrom-Mantease (also known as Aburi Amanfro) bounded on the North-East by Plaintiff's property measuring 660.8 feet more or less on the South-West by Plaintiff's property measuring 646.3 feet more or less on the South-East by Ofei Yaw's property measuring 153.9 feet more or less on the North-West by Plaintiff's property measuring 729.6 feet more or less. The Plaintiff by Indenture of Confirmation dated 28th day of March, 2007 made between Abusuapanyin Ohene Kwabena and Adu Kofi Djin stamped LVB/ER531.2011 Indexed RE 331/11 and registered as Deed No. EA 9827 dated 18th April, 2011 acquired from the Asakyiri Family of Pokrom Nsaba land covering total area of 62.35 acres of which the land the subject matter of this suit forms a small part. The Plaintiff entered into possession of the 62.35-acre land and exercised all and various rights of ownership including farming on it, planting orange trees on part of it and leasing portions out for farming and building purposes and chasing out trespassers from time to time from it. Sometime in 2023, a company, Mira Investments approached Plaintiff to acquire six acres of Plaintiff's land

on which Mira Investments had encroached and Plaintiff agreed to lease out the said six-acre land to Mira Investments.

Upon PW1 advice as Counsel for plaintiff in the transaction, Plaintiff allowed Mira Investments to continue its development of the six-acre land pending the full payment for and documentation of the land. Upon the instruction of Plaintiff, PW1 prepared lease documents for the six-acre land and Plaintiff is awaiting Mira Investments to complete payment and collect its lease documents. A copy of the prepared indenture of lease for Mira Investment yet to be delivered to it. The Plaintiff has never leased or sold the said six acres to anyone else.

Sometime in April, 2023, Plaintiff learned through Police from Koforidua that 1st Defendant was claiming five acres of the six-acre land he was leasing out to Mira Investments. The 1st Defendant around the same time tried to trespass on the subject matter land and was resisted by caretakers of Plaintiff. Plaintiff says the pronouncement and activities of the 1st Defendant in respect of that six-acre portion of the Plaintiff's land are a challenge to Plaintiff's ownership of that parcel of land. That 2nd Defendant is in the process of registering part of Plaintiff's interest (which has been duly registered by same 2nd Defendant) for 1st Defendant. The Plaintiff says he has not divested his interest in the said parcel of land out of his 62.35 acres at Pokrom Mantease to 1st Defendant and has therefore brought this action against the Defendants for the stated reliefs in his writ and statement of claim.

PW2, Ernest Mensah, is the Surveyor incharge of plaintiff's lands. PW2 per his witness statement testified that has about 10 years' experience in land surveying. He has known the Plaintiff who is a Lawyer, businessman and a former public officer for a long time and indeed worked with him as his Surveyor as he owns hundreds of acres of land across the country. PW2 told the court he knows the subject matter land at Pokrom-Mantease

(also known as Aburi Amanfro). He has surveyed and prepared site plans for a number of Plaintiff's grantees who have acquired portions of the 62.3 acres he has in the area. The land in dispute is all that parcel of land (6.08 acres) at Pokrom-Mantease (also known as Aburi Amanfro) bounded on the North-East by Plaintiff's property measuring 660.8 feet more or less on the South-West by Plaintiff's property measuring 646.3 feet more or less on the South-East by Ofei Yaw's property measuring 153.9 feet more or less on the North-West by Plaintiff's property measuring 729.6 feet more or less. The Plaintiff by Indenture of Confirmation dated 28th day of March, 2007 made between Abusuapanyin Ohene Kwabena and Adu Kofi Djin stamped LVB/ER531/2011 Indexed RE 331/11 and registered as Deed No. EA 9827 dated 18th April, 2011 acquired from the Asakyiri Family of Pokrom Nsaba land covering total area of 62.35 acres of which the land the subject matter of this suit forms a small part. The registered indenture evidencing Plaintiff's ownership of the land was tendered in court. The Plaintiff entered into possession of the 62.35-acre land and exercised all and various rights of ownership including farming on it, planting orange trees on part of it and leasing portions out for farming and building purposes and chasing out trespassers from time to time from it. As the one who surveys Plaintiff's lands, and prepares sit plans for all his land transactions. He has not prepared any site plan for 1st Defendant and to the best of my knowledge, Plaintiff has not transferred any such interest to 1st Defendant. He is a trespasser. PW2 stated he is aware of Plaintiff's dealings with one Mira Investments which has expressed interest in acquiring some 6 acres of land within the space now being claimed rather strangely by 1st Defendant. Sometime in April, 2023, the Plaintiff and PW2 learned through Police from Koforidua that 1st Defendant was claiming five acres of the six-acre land he was leasing out to Mira Investments. And 1st Defendant had started trespassory acts but Plaintiff's caretakers warded them off.

The Plaintiff on April, 18, 2024 instituted this action to protect his right. Despite all efforts by Plaintiff to maintain ownership of his land, it is surprising that 2nd Defendant, (as he is reliably informed), is making efforts to register the said 5-acre portion of the land in 1st Defendant's name without recourse to Plaintiff who 2nd Defendant itself had many years before registered in his name. PW2 emphatically states that 1st Defendant has no right to the disputed land, and I pray that this honourable court grants all reliefs Plaintiff is seeking.

LAW

Section 10 – 12, 14 of NRCD 323 defines the Burden of Persuasion as:

10 "(1) For the purposes of this Decree, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the court.

(2) The burden of persuasion may require a party to raise a reasonable doubt concerning the existence or non-existence of a fact or that he establishes the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt.

11*(1) For the purposes of this Decree, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue.*

(2) In a criminal action the burden of producing evidence, when it is on the prosecution as to any fact which is essential to guilt, requires the prosecution to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact beyond a reasonable doubt.

(3) In a criminal action the burden of producing evidence, when it is on the accused as to any fact the converse of which is essential to guilt, requires the accused to produce

sufficient evidence so that on all the evidence a reasonable mind could have a reasonable doubt as to guilt.

(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact was more probable than its non-existence.

12 *(1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.*

(2) "Preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the court by which it is convinced that the existence of a fact is more probable than its non-existence.

14 Allocation of burden of persuasion

Except as otherwise provided by law, unless it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence that person is asserting."

The law relating to standard of proof in civil matters without exception is proof by preponderance of probabilities having regard to sections 10, 11 and 12 of Evidence Act, 1975 (NRCD 323). Section 11 states among other things that, for the purposes of the Act the burden of producing evidence mean the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue. Section 12 instructs that unless otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities which means the degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more

probable than its non-existence. **See: ADWWUBENG v DOMFEH (1996-97) SCGLR 660. See also: AVADZINU vrs. NYOONA (2010) 27 GMJ 132CA.**

The Supreme Court in the case entitled **DON ACKAH VRS PERGAH TRANSPORT LTD (CIVIL APPEAL NO. J4/51/2009) 21st April 2020, [2010] SCGLR 728** at 736 **held** as follows:

"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail.

The method of producing evidence is varied and it includes the testimonies of the party and material witnesses, admissible hearsay documentary and things (often described as real evidence) without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the Court or Tribunal of fact such as a Jury" It is trite learning that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-existence."

The expression burden of persuasion can therefore be interpreted to mean the quality, quantum, amount, degree or extent of evidence the litigant is obliged to adduce in order to satisfy the requirement of proving a situation or a fact. See: **AGO SAI & OTHERS v KPOBI TETTEH TSURU III [2010] SCGLR 762 at 779. See also: Fred Obikyere in his Book, Legal Resource Book: The Law as Decided by The Superior Courts in Ghana pages 150,151, 164**

The duty cast on the parties before the law Courts to ***lead credible evidence*** on issues raised in their claims or cases for which they have assumed the burden of proof has never been in doubt. It therefore means that in assessing the balance of probabilities, all the evidence of both the plaintiff and defendant must be considered and the party in whose

favour it tilts is the person whose case is more probable of rival version and is deserving of a favourable verdict. **See:**

TAKORADI FLOOR MILLS VRS SAMIRA FARIS (2005-2006) SCGLR 682 @ 900.

In law, all issues of fact in dispute are proved by evidence. It is a fundamental principle in the law of evidence that he who asserts or claims an entitlement has the onus of proving the basis of that claim. In the oft-cited case of **MAJOLAGBE V LARBI [1959] GLR 190**, a party on who the burden of proof lies proves an averment in his pleadings, capable of proof in a positive way, not by merely mounting the witness box and repeating it on oath but by producing corroborative evidence that must necessarily exist if his averment were to be true. The corroborative evidence may be documents, like one on the terms of a contract, otherwise called the terms or conditions of service.

Indeed, the Supreme Court per Adinyira, JSC in **ACKAH V. PERGAH TRANSPORT LTD. [2010] SCGLR 728 at page 736 stated:**

'*It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail…'*

It is one of the duties of the court to assess all the evidence on record in order to determine in whose favour the balance of probabilities would lie. This duty has been explained in the case of **RE PRESIDENTIAL ELECTION PETITION (NO. 4) AKUFFO-ADDO & ORS V. MAHAMA & ORS. [2013] SCGLR (SPECIAL EDITION) 73,:** where the Supreme Court held at page 322 of the report as follows:

Our understanding on the rules of Evidence Decree, 1975 on the burden of proof is that in assessing the balance of probabilities, all the evidence, be it that of Plaintiff, or the Defendant, must be considered and that party in whose favour the balance tilts is the person whose case is the more probable of the rival versions and is deserving of a favourable verdict.

This presupposes that even in the absence of a contrary evidence on record, the party alleging a fact must adduce a credible and sufficient evidence to make the existence or otherwise of his assertion believable.

The Plaintiff led evidence *to indicate his boundaries*, and that he had been in possession of the land the subject matter of this suit since 2007. He tendered in through his witness (PW2) **Exhibit 'A'** which is his indenture.
In the instant suit, the Plaintiff led evidence in terms of incidents of purchase from the allodial owner.

It is a settled principle of law that where a court grants declaration of title, the land the subject matter of that declaration should be clearly identified so that an order of possession can be granted. In **ANANE V. DONKOR, KWARTENG V. DONKOR (CONSOLIDATED) [1965] GLR 188 AT 192,** Ollenu JSC said:
''If the boundaries of such land are not clearly established, a judgment or order of the court will be in vain. Again, a judgment for declaration of title to land should operate as res judicata to prevent the parties re-litigating the same issues in respect of the identical subject-matter, but it cannot so operate unless the subject-matter thereof is clearly identified.'' Also, IN **BISSAH V. GYAMPOH III [1964] 381** it was held that *"It is the duty of a Plaintiff who claims a declaration of title to land to identify clearly to the court the area of land to which his claim relates".*

The Plaintiff per the evidence before the court is in possession of the disputed land. The Plaintiff described his land and gave **Exhibit 'A'** with a schedule and a site plan attached, clearly describing the land the subject of the suit. The Plaintiff again led cogent evidence by describing the land in the witness statement of PW2.

The PW2 stated in paragraph 9 of his witness statement in respect of Plaintiff's entire land as follows:

"…Plaintiff by Indenture of Confirmation dated 28th day of March, 2007 made between Abusaupanin Ohene Kwabena and Adu Kofi Djin stamped LVB/ER531/2011 indexed RE: 331/11 and registered as Deed No. EA 9827 dated 18th April, 2011 acquired from the Asakyiri family of Pokrom Nsaba land covering total area of 62.35 acres of which the land the subject matter of this suit forms a small part….'

In respect of the specific portion of land that Plaintiff has given out to Mira Investments is the same portion that has been encroached or trespassed upon by 1st Defendant. Mira Investments (Plaintiff's grantee) was still making payment after which an indenture of lease already prepared and labelled **Exhibit 'B'**, will be executed and handed over, PW1 provides the description and identity of that portion of land in paragraph 5 of his Witness Statement:

The land in dispute is all that parcel of land (6.08 acres) at Pokrom-Mantease (also known as Aburi Amanfro) measuring 660.8 feet more or less on the South-West by Plaintiff's property measuring 660.8 feet more or less on the South-West by Plaintiff's property measuring 646.3 feet more or less on the South-East by Ofei Yaw's property measuring 153.9 feet more or less on the North-West by Plaintiff's property measuring 729.6 feet more or less.

Proof of ownership of land: It is trite law that a party seeking a declaration of title to land must adduce satisfactory evidence to establish their (a) root of title, (b) mode of acquisition and (c) overt acts of possession. This position of the law is espoused in several decisions of the court including: **MONDIAL VENEER (GH) LTD. V. AMUAH GYEBU XV [2011] 1 SCGLR 466** where Georgina Wood, CJ (as she then was) stated as follows:

''In land litigation, even where living witnesses who were directly involved in the transaction under reference are produced in court as witnesses, the law requires the person asserting title, and on whom the burden of persuasion falls… to prove the ***root of title, mode of acquisition and overt acts of possession*** *exercised over the subject matter of litigation. It is only where the party has succeeded in establishing these facts on the balance of probabilities, that the party would be entitled to the claim'' (emphasis supplied).*

It is on these three (3) elements that the plaintiff established his claim. The unchallenged evidence of the Plaintiff is to the effect that he acquired the parcel of land from the Asakyiri family of Pokrom evidenced by a deed of confirmation (Exhibit 'A') executed on 28th March, 2007 between Plaintiff and the head of the family, Abusuapanin Ohene Kwabena.

Proof of Root of Title: In a suit for declaration of title, the Plaintiff has to establish his root of title. The Plaintiff can do so by giving the tradition of acquisition or an inherited estate of the incidents of purchase. This was held in the case of **AKOTO II V. KAVEGE [1984 – 86] 2 GKR 365 AT OAGE 365.** It was also stated in the case OF **ANTO V. MONSAH [1957] 3 WALR 1 AT 2** that to succeed in an action for declaration of title, it is necessary to show what the origin or root of title is. In this country it is derivable in various ways – either by grant from a stool, or whereby virtue of being a subject of a stool one acquired original possession by cultivation of forest land, or by sale from a proved owner etc.

The Plaintiff in paragraph 4 of his statement of claim provided evidence of his root of title. The same was reproduced in paragraph 6 of PW1's Witness Statement. The Plaintiff traces his root of tiled from the Asakyir family of Pokrom evidenced by a deed of confirmation (Exhibit 'A') executed on 28th March, 2007 between Plaintiff and the head of

the family, Abusuapanin Ohene Kwabena. The Plaintiff went ahead to stamp the deed at LVB/ER531/2011 Index the same at RE: 331/11 and registered as Deed No. EA 9827 on 18th April, 2011. The total acreage acquired is 62.35 acres. The Plaintiff has since been in active possession of the entire land and has placed caretakers on the land to oversee his interest. This has never been challenged since he first stepped on the land.

Proof of Mode of Acquisition: The Plaintiff is required to prove his mode of acquisition. **In AWUKU V TETTEH [2011] 1 SCGLR 366** holding (1) as adopted in the recent case of **GEORGE KWADWO ASANTE & ORS V. MADAM ABENA AMPONSAH & ORS [2002] JELR 109676 (SC)**, the court held as follows:

"In an action for a declaration of titled to land the onus was heavily on the Plaintiff to prove his case. He must, indeed, show clear title. He could not rely on the weakness of the Defendant's case. For a stool or family land to succeed in an action for declaration of title its method of acquisition conclusively, either by traditional evidence or by overt acts of ownership exercised in respect of the land in dispute must be proved."

The Plaintiff acquired his entire land from the allodial owners by way of purchase. Indeed, the recital in Exhibit 'A' states as follows:

"…WHEREAS the vendor by indenture dated 6th day of July, 1993 made between Abusuapanyin Ohene Kwabena, the Vendor herein and Adu Kofi Djin, the Purchaser herein gave out forever the parcel of land at Ntawuso-Aburi Amanfo near Aburi-Akuapim herein after described…

WHEREAS the Purchaser lodged the said documents at the Lands Commission, Koforidua registry for registration in July 1993 and was plotted therein but the documents got lost at the Lands Commission Registry in Koforidua…

AND WHEREAS the Purchaser had been physically in occupation of the said parcel of land since July 1993 and has asked for, and the Vendor has agreed to execute this grantor confirmation hereinafter contained…

Now therefore in pursuit of the said agreement for the purpose of assurance and in consideration of the sum of GH¢4,000,000.00 paid to the Vendor hereby confirms and demises unto the Purchaser forever the parcel of land at Ntawuso – Aburi Amanfro near Aburi-Akuampim near Aburi hereinafter described..." From the above recital, it is obvious that the land was acquired by Plaintiff through purchase from the Asakyiri family through its Abusuapanyin.

Overt acts of Possession: As established in a plethora of decided case a Plaintiff in an action for declaration of title must prove his case, with one of the ways being through overt acts of possession or traditional evidence.

See: **AWUKU V. TETTEH [2011] 1 SCGLR 366 HOLDING (1)**.
See also: **ODAMETEY V. CLOUCHA & ANOTHER [1089-90] 1 GLR 14 SC.**
See also: **ODOI V. HAMMOND [1991] 1 SCGLR.**
See also: **EMMANUEL K. AZAMETI V. DINGLE DORDZI ATTIPOE CIVIL APPEAL NO. J4/04/2022 DATED 15TH MARCH, 2023**.

The Plaintiff, further, in proving his case for the action for declaration of title, tendered through PW1 a copy of an indenture of lease covering a grant he made to one Mira Investments. Indeed, the Plaintiff's possession and control of the land and how his caretakers he placed on the land resisted 1st Defendant during his trespassory endeavor confirms Plaintiff's possession. This was after Plaintiff had leased same to Mira.

This is clear evidence of the overt acts of possession demonstrated by the Plaintiff on the land and his caretakers most of whom are farmers on the land are very much alive to defending the possessory rights of Plaintiff.

It is apparent from the above that the Plaintiff has the right to the land I hereby declare title to the land in dispute in favour of the Plaintiff. The owner of the legal title is the owner of the beneficial title therefore the court orders that the Plaintiff shall recover possession of the land from the Defendants. Further I order that the defendants, their agents, servants, assigns, and all who may claim through them are perpetually restrained from entering the said land or in any way interfering with the right of Plaintiff to possession.

The Plaintiff prayed the court for general damages. It is trite that where trespass is found as a fact the plea for general damages cannot go unheeded. The court therefore orders that the Plaintiff shall recover from: and the Defendants shall pay to the Plaintiff the sum of GH¢30,000.00 as general damages for trespass.

I hereby award costs of GH¢10,000.00 in favour of Plaintiff against 1st Defendant.

In conclusion, the court grants all the reliefs prayed for by Plaintiff as follows:

a) Declaration of title to all that 6.08-acre parcel of land at Pokrom-Mantease bounded on the North-East by Plaintiff's property measuring 660.8 feet more or less on the South –West by Plaintiff's property measuring 646.3 feet more or less on the South-East by Ofei Yaw's property measuring 153.9 feet more or less on the North-West by Plaintiff's property measuring 729.6 feet more or less.
b) Recovery of possession of the said land.

c) Perpetual Injunction restraining the 1st Defendant, his servants, agents, privies and assigns from entering the said land for any purpose or in any way disturbing or interfering with the Plaintiff's and or his tenant's right to possession of the said land or quiet enjoyment of possession of the said land.

d) General Damages of GH¢30,000.00.

e) Order for the 2nd Defendant to ensure Plaintiff's ownership of the said land is registered in their records in accordance to prescribed statutes, rules, principles and procedure governing the 2nd Defendant's authority.

Cost of GH₵10,000.00 is hereby awarded in favour of Plaintiff and against the 1st Defendant.

(SGD.)

H/L RUBY NAA ADJELEY QUAISON [MRS.]

(JUSTICE OF THE HIGH COURT)